

		23-40.) The arbitration agreement covers the claims, but only if Defendant can meet its burden Plaintiff was not actually the victim of identity theft and was in fact, the person who applied for and used the credit card. Here, Defendant has not shown by a preponderance of the evidence that Plaintiff assented to the terms of the Cardholder Agreement, including the arbitration provision. Defendant's timeline and description of events, including phone calls from Plaintiff's phone number evidencing consent, is consistent with identity theft, including a person hacking into someone's computer or phone and falsely pretending to be that person. The actions taken by Plaintiff are also consistent with a person whose identity has been stolen and trying to correct the issue. (Hopkins-Donihe Decl. ¶¶ 8-16, 19, Ex. F; Mott Decl. ¶¶ 2-19, Exs. A, B.) Defendant failed to meet its burden showing a valid and enforceable arbitration agreement between the parties. The motion is therefore DENIED. <i>Counsel for Plaintiff shall provide notice of this ruling.</i>
5.	Williams v. Southern California Edison 23-1300300	The motion to bifurcate and try issues of causation in advance of issues of damages filed by defendant Southern California Edison Company (Defendant) is DENIED. <i>Code of Civil Procedure section 598</i> provides that the court may order certain issues tried before others "when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby[.]" (<i>Code Civ. Proc.</i>, § 598.) Similarly, <i>Code of Civil Procedure section 1048(b)</i> provides: "The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States." (<i>Code Civ. Proc.</i>, § 1048(b).) The Court has considered the arguments and evidence submitted by both parties and determines, at this time, bifurcation as requested by Defendant is not warranted. Accordingly, the motion is DENIED. <i>Counsel for Plaintiffs shall give notice of this ruling.</i>
6.	Auto Finance Solutions, LLC v. Prestige Kia Riverside 25-1500766	(Off calendar)
7.	Raygoza v. Kia America, Inc. 25-1466366	Before the Court is a motion to strike filed by defendant Kia America, Inc. (Defendant) directed to the First Amended Complaint (FAC) filed by plaintiff Esperanza L. Batres Raygoza (Plaintiff). For the reasons set forth below, the motion to strike is DENIED.

		Defendant moves to strike the prayer for punitive damages in the Complaint. A motion to strike is the proper vehicle to attack a claim for punitive damages. (<i>Code of Civ. Proc. §§ 435-436; Truman v. Turning Point of Central Calif., Inc.</i> (2010) 191 Cal.App.4th 53, 63.) A plaintiff may recover exemplary or punitive damages where it is proven that "the defendant has been guilty of oppression, fraud or malice." (<i>Civ. Code § 3294(a)</i>.) A properly pleaded fraud claim will itself support recovery of punitive damages. (<i>Stevens v. Sup. Ct. (St. Francis Med. Ctr.)</i>(1986) 180 Cal.App.3d 605, 610.) An employer is not liable for punitive damages "based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice." (<i>Civ. Code § 3294, subd. (b)</i>.) With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation." (<i>Civ. Code, § 3294, subd. (b)</i>); see <i>Weeks v. Baker McKenzie</i> (1998) 63 Cal.App.4th 1128, 1150-1151; <i>College Hospital, Inc. v. Superior Court</i> (1994) 8 Cal.4th 704, 712- 713.) Here, Plaintiff cured the defect in the prior pleading and now alleges sufficient facts to support corporate liability for punitive damages, at least at the pleading stage. (FAC ¶ 46.) While Defendant argues the new allegations are conclusory, the FAC as a whole (including a viable claim for fraud) contains sufficient facts to apprise Defendant of the basis upon which Plaintiff is seeking relief. (<i>Perkins v. Superior Court</i> (1981) 117 Cal.App.3d 1, 6.) Furthermore, specific facts regarding corporate authorization and ratification lies within the knowledge of Defendant. The motion is therefore DENIED. <i>Plaintiff shall give notice of this ruling.</i>
8.	Jaffe v. Venous Technologies Inc, 1415883	Before the Court is a motion to enforce prior discovery order and for further code-compliant responses to requests for admission, set two (RFA), nos. 17 and 18, filed by plaintiff Allen V. Jaffe (Plaintiff) against defendant Venous Technologies, Inc. (Defendant). For the reasons set forth below, the motion is DENIED. Defendant's prior responses to RFA nos. 17 and 18 contained objections only, without a denial or admission. On November 13, 2025, the Court overruled the objections based on relevance, ambiguity and undue burden, and ordered Defendant to produce further responses to the RFAs within 20 days. (RAO 83.) Plaintiff concedes Defendant provided supplemental responses on December 3, 2025. (Motion, p. 4.) While Plaintiff titled the motion, in part, as a "motion to enforce prior discovery order," the responses were timely served within 20 days as ordered by the Court, and Defendant responded to RFA nos. 17 and 18 with denials (albeit with

		the same objections). (Declaration of John K. Rubiner, Ex. B.) Thus, Defendant complied with the Discovery Order. To the extent Plaintiff seeks further responses pursuant to <i>Code of Civil Procedure</i> section 2033.290 (see Motion, pp. 1, 4), such a motion is procedurally defective because it is not accompanied by a meet and confer declaration or a separate statement. (<i>Code of Civ. Proc.</i> § 2030.290, subd. (b)(1), (2); <i>Cal. Rules of Court</i>, rule 3.1345(c).) Moreover, the motion fails on the merits. Responses to requests for admission must be “as complete and straightforward as the information reasonably available to the responding party permits.” (<i>Code Civ. Proc.</i>, § 2033.220, subd. (a).) “Each answer shall: [¶] (1) Admit so much of the matter involved in the request as is true, either as expressed in the request itself or as reasonably and clearly qualified by the responding party. [¶] (2) Deny so much of the matter involved in the request as is untrue. [¶] (3) Specify so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge.” (<i>Id.</i>, subd. (b).) In lieu of admitting or denying the request, the party may serve objections to particular requests. (<i>Code of Civ. Proc.</i> § 2033.210, subd. (b).) If only part of a request is objectionable, the remainder must be answered. (<i>Code of Civ. Proc.</i> § 2033.230, subd. (a).) Here, the Court previously overruled Defendant’s objections because the responses contained objections only – meaning that Defendant could not hide behind the objections to avoid providing a substantive response. Now that Defendant has provided a substantive response to RFA nos. 17 and 18 with denials, the objections merely qualify the denials, <i>i.e.</i>, “[d]eny so much of the matter involved in the request is untrue.” (<i>Code Civ. Proc.</i>, § 2033.220, subd. (b)(2).) In other words, Defendant objects to only part of the request. This is proper under the code. The motion is therefore DENIED. <i>Defendant shall give notice of this ruling.</i>
9.	Sakasamo v. Adidev Technologies, Inc. 25-1334503	The demurrer of defendant Adidev Technologies, Inc. (Adidev) directed to the complaint of plaintiff Sisiamé B. Sakasamo (Plaintiff) is OVERRULED IN PART and SUSTAINED IN PART with 20 days leave to amend. As an initial matter, the Court declines to consider Plaintiff’s untimely opposition. The opposition was filed four days late. The opposing papers do not set forth good cause for the tardiness, nor is there any explanation whatsoever for the late filing. The Court thus exercises its discretion to refuse to consider the late filed papers. (<i>Cal. Rules of Ct.</i>, rule 3.1300(d).) Second Cause of Action for Breach of the Implied Covenant of Good Faith and Fair Dealing A breach of the implied covenant of good faith and fair dealing involves something beyond breach of the contractual duty itself. (<i>Careau & Co. v. Security Pacific Business Credit, Inc.</i> (1990) 222 Cal.App.3d 1371,